



SMSF regulation and compliance

How we regulate SMSFs and auditors, and how you can check your SMSF compliance status and report contraventions.

How your SMSF is regulated



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SMSF compliance



Your compliance status in Super Fund Lookup, actions we take for non-compliance, and how to report contraventions.

QC 103942

How your SMSF is regulated

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On this page

What we regulate



What ASIC regulates

How we work with ASIC

What we regulate

The Australian Taxation Office regulates self-managed super funds' (SMSF) compliance with super and tax laws to safeguard retirement income.

Our regulation activities include:

- checking you manage your fund in accordance with super and tax laws
- implementing and maintaining systems to check the legal compliance of funds
- taking enforcement action when there is a breach of the law
- verifying a fund's primary purpose is to pay retirement benefits to members
- providing information, forms and education products to help you set up and manage your fund
- assessing applications for early release of super on compassionate grounds
- checking SMSF auditors perform their duties to the required standard
- investigating and referring promoters of super schemes.

We don't:

- develop laws or related policies
- provide financial or investment advice
- evaluate your investment choices
- advise on the structure of your fund, or whether an SMSF is a sensible choice for you
- advise on resolving disputes between trustees
- recommend specific professionals or intervene if you have a dispute with a professional.

What ASIC regulates

ASIC is the consumer protection regulator for financial services. These include:

- investing
- superannuation
- deposits
- insurance
- financial advice.

ASIC regulates and enforces laws that promote honesty and fairness in financial products, services, and markets, as well as Australian companies. For example, ASIC regulates:

- Australian financial services (AFS) licensees and their financial advisers who must be [registered with ASIC](#) 
- [registered](#)  SMSF auditors
- Australian companies, including companies that are corporate trustees of an SMSF.

How we work with ASIC

To meet our joint regulation responsibilities, we assist ASIC by:

- providing SMSF data to assist superannuation sector analysis
- collaborating to develop publications and guidance material
- providing advice regarding unlawful super schemes
- making referrals to ASIC if we discover potentially unlicensed advice providers, or SMSF auditors who fail to meet their obligations.

QC 23307

Our commitment to you

We are committed to providing you with accurate, consistent and clear information to help you understand your rights and entitlements and meet your obligations.

If you follow our information and it turns out to be incorrect, or it is misleading and you make a mistake as a result, we will take that into account when determining what action, if any, we should take.

Some of the information on this website applies to a specific financial year. This is clearly marked. Make sure you have the information for the right year before making decisions based on that information.

If you feel that our information does not fully cover your circumstances, or you are unsure how it applies to you, contact us or seek professional advice.

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